

23STCV11406 23STCV11406

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-02

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Case Number: 23STCV11406 Hearing Date: July 2, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 2, 2026

Case Name: Dechter v. Massman, et al.

Case No.: 23STCV11406

Matter: Motion for Relief

Moving Party: Plaintiff Bradley J. Dechter

Responding Party: Defendants Ronald Massman and DHX—Dependable Hawaiian Express,

Inc.

Notice: OK

Ruling: The Motion is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On May 19, 2023, Plaintiff Bradley J. Dechter filed a Complaint. On October 9, 2023, Plaintiff filed the operative First Amended Complaint ("FAC") against Defendants Ronald Massman and DHX–Dependable Hawaiian Express, Inc. ("DHX") for (1) breach of oral contract, (2) breach of oral contract, (3) fraud, and (4) unjust enrichment. Plaintiff alleges that he is entitled to an interest in DHX due to his contributions, but that his ownership interest has been refused.

On March 13, 2026, the Court denied Plaintiff's motions to compel further responses because they were filed more than 45 days after Defendants' responses.

Plaintiff now seeks relief from the loss of its motions to compel, arguing that the electronic filing service had an error when Plaintiff attempted an 11:45-11:50 pm filing, causing the actual filings to take place after midnight, at 12:03 am and 12:11 am. Plaintiff seeks relief under Cal. Rules of Court, Rule 2.259(c) and CCP § 473(b).

Cal. Rules of Court, Rule 2.259(c) states: "If a technical problem with a court's electronic filing system prevents the court from accepting an electronic filing on a particular court day, and the electronic filer demonstrates that he or she attempted to electronically file the document on that day, the court must deem the document as filed on that day. This subdivision does not apply to the filing of a complaint or any other initial pleading in an action or proceeding."

The evidence shows that Plaintiff attempted the filings on June 25, 2025, at around 11:45 pm. If the filings were successful at that time, the filings would have been timely. Because apparently there was some sort of system error that delayed the actual filings past midnight and into June 26 and because there is a policy of hearing disputes on their merits, the Court will revive the motions to compel under Cal. Rules of Court, Rule 2.259(c).

The Motion is granted.

Moving party to give notice.